

ORIGINAL

Federal Maritime Commission

Cc:
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Donna Katri Wynder,

Claimant,

Informal Docket No. 1962(I)

v.

Ryan Sims, Sims, Waters & Associates, Inc.
d/b/a Sunshine Global Transport, Mohammad
Madi, Debra Caesh d/b/a Sea & Shore Shipping,
Inc.,

FILED

NOV 19 2018

Respondents.

Federal Maritime Commission
Office of the Secretary

**RESPONDENTS RYAN SIMS AND SIMS, WATERS & ASSOCIATES, INC.
D/B/A SUNSHINE GLOBAL TRANSPORT'S MOTION TO DISMISS CLAIMANT'S
COMPLAINT OR, IN THE ALTERNATIVE,
MOTION FOR A MORE DEFINITE STATEMENT**

COME NOW, Respondents Ryan Sims and Sims, Waters & Associates, Inc. d/b/a Sunshine Global Transport (hereinafter referred to as "Respondent Sims Waters") (hereinafter collectively referred to as "Respondents"), by and through their undersigned attorneys, and hereby file their Motion To Dismiss Claimant's Complaint, or, in the Alternative, Motion For A More Definite Statement. The grounds for this Motion are as follows:

BACKGROUND

1. On October 30, 2015, Claimant entered into the Customs Power of Attorney And Acknowledgement of Terms and Conditions ("Contract") with Respondent Sims Waters for the shipment of a 2007 Cadillac Escalade ESV from New York, New York to Lagos, Nigeria. In addition to signing the contract, Claimant initialed the seventh paragraph from the bottom

acknowledging receipt of the Terms and Conditions of Service. Attach is a signed copy of the Contract and the Terms and Conditions of Service as **Exhibit A**.

2. On October 30, 2015 Respondent Sims Waters issued a Dock Receipt and contacted A Plus Transport, LLC (“A Plus Transport”), whose contact was Ahmed Takane, through Central Dispatch and dispatched A Plus Transport to pick up the Cadillac from Claimant’s address in New York, New York. Attached is a copy of the Dock Receipt (**Exhibit B**) and Dispatch Sheet (**Exhibit C**).

3. Central Dispatch is a subscription-based service that, among other things, connects carriers with brokers that need to transport vehicles.

4. On October 31, 2015, A Plus Transport loaded the Cadillac onto a trailer for transport to the Bayonne Auto Terminal in Bayonne, New Jersey.

5. Claimant alleges in her complaint that when the Cadillac arrived at its destination, Ahmed Takane of A Plus Transport informed Claimant that “he was unable to move the vehicle because it was badly damaged.” (See page 2, paragraph 2 of Claimant’s complaint). Claimant fails to identify the location of Ahmed Takane in her complaint.

6. Claimant does not provide any evidence in her complaint that the Cadillac was damaged by A Plus Transport during transportation to Ahmed Takane’s unidentified location.

7. On November 4, 2015, Claimant emailed Respondent Sims Waters and terminated her contract with same. Attached is a copy of Claimant’s November 4, 2015 email as **Exhibit D**. Respondent Sims Waters had no further business dealings with Claimant as of November 4, 2015. (See paragraph 3 of Myra Sims’ Affidavit attached hereto as **Exhibit E**).

8. The timeline of Claimant’s allegations in her complaint continues from this point, albeit without the involvement of Respondents Ryan Sims and Sims Waters.

9. On November 7, 2015, despite her allegations of negligence and deceit against A Plus Transport and Ahmed Takane, Claimant entered into an agreement with Mr. Takane for the shipment of her Cadillac to Nigeria. Attached is a copy of said agreement as **Exhibit F**.

10. Claimant alleges that Ahmed Takane then connected her with a Mohammad Madi d/b/a Sea & Shore Shipping, Inc. and Debra Caesh.

11. Claimant alleges in her complaint that the Cadillac sustained additional damages between the time it was delivered to Ahmed Takane and its arrival in Lagos, Nigeria, all of which took place after she terminated her Contract with Respondent Sims Waters. However, Claimant's complaint does not set forth a list of the alleged damages to the Cadillac or when each of the alleged damages were sustained.

12. By Claimant's own admission in her complaint, Respondent Ryan Sims instructed her to have Ahmed Takane return the Cadillac to Claimant. Instead, Claimant terminated her Contract with Respondent Sims Waters and made arrangements to ship her Cadillac with Ahmed Takane and other persons and/or entities which have no affiliation with Respondent Sims Waters.

13. As of October 30, 2015, the day it dispatched A Plus Transport to pick up Claimant's Cadillac, Respondent Sims Waters had used A Plus Transport on eight (8) separate occasions from approximately July 21, 2015 to October 22, 2015 without any incidents or complaints from clients. (See paragraph 4 of Myra Sims' Affidavit attached hereto as **Exhibit E**). Respondent Sims Waters used A Plus Transport an additional eight (8) times after the incident which gives rise to Claimant's complaint without any incidents or complaints from clients. (See paragraph 5 of Myra Sims' Affidavit attached hereto as **Exhibit E**). Before engaging A Plus Transport to transport vehicles for Respondent Sims Waters, and before engaging A Plus Transport

to transport Claimant's Cadillac, Sims Waters confirmed that A Plus Transport carried insurance. (See paragraph 7 of Myra Sims' Affidavit attached hereto as **Exhibit E**).

14. Claimant never paid Respondent Sims Waters for its services. (See paragraph 6 of Myra Sims' Affidavit attached hereto as **Exhibit E**).

15. Respondent Ryan Sims is an employee of Respondent Sims Waters and does not possess an Ocean Transportation Intermediary license of any sort.

16. Respondents do not consent to the Informal Procedure set forth in 46 C.F.R. Part 502, Subpart S.

17. If Respondents prevail in this action, they are entitled to their reasonable attorneys' fees pursuant to 46 C.F.R. § 502.318(b) and 46 C.F.R. § 502.254.

MOTION TO DISMISS

18. Claimant's complaint should be dismissed because it fails to state a claim against Respondent Ryan Sims upon which relief can be granted because 46 U.S.C. § 41102(c) is not applicable to Ryan Sims because he is not a "common carrier, marine terminal operator, or ocean transportation intermediary." *Id.* See Fed. R. Civ. P. 12(b)(6).

19. Claimant's complaint should be dismissed because it fails to state a claim against Respondents Ryan Sims and Sims Waters upon which relief can be granted because Claimant has not established that Respondents "fail[ed] to establish, observe, and enforce just and reasonable regulations and practices relating to or connected with receiving, handling, storing, or delivering property," as required by 46 U.S.C. § 41102(c). Fed. R. Civ. P. 12(b)(6).

20. Claimant's complaint should be dismissed because it fails to state a claim against Respondent Sims Waters upon which relief can be granted because the Federal Maritime

Commission (“FMC”) does not have subject-matter jurisdiction over the claims alleged in the complaint. Fed. R. Civ. P. 12(b)(1).

ARGUMENTS

- 1. Claimant’s complaint should be dismissed because it fails to state a claim against Respondent Ryan Sims upon which relief can be granted because 46 U.S.C. § 41102(c) is not applicable to Ryan Sims because he is not a “common carrier, marine terminal operator, or ocean transportation intermediary.” *Id.* See Fed. R. Civ. P. 12(b)(6).**

The complaint alleges that Respondents violated 46 USC § 41102(c) which states: “(c) Practices in handling property.—A common carrier, marine terminal operator, or ocean transportation intermediary may not fail to establish, observe, and enforce just and reasonable regulations and practices relating to or connected with receiving, handling, storing, or delivering property.” (Emphasis added). “Under the Administrative Procedure Act, Claimants have the burden of proving, by a preponderance of the evidence, that Respondents violated the Shipping Act, and this burden of persuasion does not shift.” *Salomon and Jasmin Gruenberg-Reisner v. Overseas Moving Specialists, Inc. d/b/a Int’l Sea & Air Shipping*, FMC Informal Docket No. 1947(I) (October 7, 2016) (citing 5 U.S.C. § 556(d); *Maier Terminals, LLC v. Port Auth. of N.Y. & N.J.*, 33 S.R.R. 821, 840 (FMC 2014); *DSW Int’l, Inc. v. Commonwealth Shipping, Inc.*, 32 S.R.R. 763, 765 (FMC 2012)).

Claimant has neither plead nor provided evidence that Respondent Ryan Sims is a common carrier, marine terminal operator, or ocean transportation intermediary. In fact, Respondent Ryan Sims is not a licensed common carrier, marine terminal operator, or ocean transportation intermediary. Respondent Sims Waters is an Ocean Transportation Intermediary (License # 003025), but Ryan Sims is not.

Claimant's claim must be dismissed against Respondent Ryan Sims as 46 U.S.C. § 41102(c) is not applicable to Mr. Sims and therefore it fails to state a claim upon which relief can be granted.

2. **Claimant's complaint should be dismissed because it fails to state a claim against Respondents Ryan Sims and Sims Waters upon which relief can be granted because Claimant has not established that Respondents "fail[ed] to establish, observe, and enforce just and reasonable regulations and practices relating to or connected with receiving, handling, storing, or delivering property," as required by 46 U.S.C. § 41102(c). Fed. R. Civ. P. 12(b)(6).**

Since Claimant terminated her Contract with Respondent Sims Waters on November 4, 2015, before the Cadillac was placed on the vessel and delivered to Nigeria, her only possible claim against Respondents under 46 U.S.C. § 41102(c) is that the selection of A Plus Transport to pick up the Cadillac and deliver it to the port was the result of an unjust and unreasonable practice. However, the Claimant not only fails to provide evidence of an unjust or unreasonable practice, she fails to allege the existence of any unjust or unreasonable practice by Respondents.

As stated above, and in Myra Sim's affidavit attached hereto as **Exhibit E**, Respondents had used A Plus Transport eight times, without any incidents or complaints, prior to dispatching them to pick up Claimant's Cadillac. (See paragraph 4 of Myra Sims' Affidavit attached hereto as **Exhibit E**). In addition, before engaging A Plus Transport to transport vehicles for Respondent Sims Waters and before engaging A Plus Transport to transport Claimant's Cadillac, Sims Waters confirmed that A Plus Transport carried insurance. (See paragraph 7 of Myra Sims' Affidavit attached hereto as **Exhibit E**).

Respondents clearly used a just, reasonable practice in selecting a carrier that was known to Respondents, had a proven track record of success, and was insured to pick up and deliver Claimant's Cadillac. Further, after Claimant's Cadillac was delivered to Mr. Takane, she had enough confidence in A Plus Transport and Mr. Takane that she terminated her Contract with

Respondent Sims Waters and entered into a new agreement with Mr. Takane. Claimant argues that Respondent Sims Waters violated 46 U.S.C. § 41102(c) by hiring A Plus Transport but had no issues with hiring A Plus Transport/Mr. Takane to complete the shipment of her Cadillac to Nigeria.

Claimant seeks damages in her complaint for the damage allegedly sustained by her Cadillac. Claimant has not established that said damages are the result of Respondents' failure "to establish, observe, and enforce just and reasonable regulations and practices relating to or connected with receiving, handling, storing, or delivering property." 46 U.S.C. § 41102(c). As a result, the complaint must be dismissed.

3. Claimant's complaint should be dismissed because it fails to state a claim against Respondent Sims Waters upon which relief can be granted because the FMC does not have subject-matter jurisdiction over the claims alleged in the complaint. Fed. R. Civ. P. 12(b)(1).

Claimant's complaint is a breach of contract or property damage claim brought under the guise of a violation of 46 U.S.C. § 41102(c). The court in *In re Containership Co. (TCC) A/S*, 466 B.R. 219 (Bankr. S.D.N.Y. 2012) stated:

Consistent with the statutory limits of its jurisdiction, the FMC reviews complaints brought before it to determine "whether a complainant's allegations are inherently a breach of contract claim, or whether they also involve elements peculiar to the Shipping Act." *Cargo One, Inc. v. COSCO Container Lines Co., Ltd.*, FMC No. 99-24, at 12 (Oct. 31, 2000).

The facts of this case that pertain to Respondents Ryan Sims and Sims Waters are straight forward and do not involve any elements peculiar to the Shipping Act. The FMC has consistently dismissed breach of contract and property damage claims brought pursuant to the Shipping Act.

In *Salomon and Jasmin Gruenberg-Reisner, supra*, the FMC upheld a small claims officer's decision to dismiss claimant's breach of contract and property damage claims stating:

As to the breach of contract claim, the Shipping Act bars the Commission from "hearing those claims, which, although couched in terms of alleged violations of the 1984 Act, seek remedies that would otherwise be available in a breach of contract action if the matter were brought before a court." *Western Respondent Trade and Dev. Corp. v. ANERA*, 26 S.R.R. 874,884 (FMC 1994). Similarly, "allegations of misrepresentations should likewise be considered by a court or arbitrator and not by the Commission." *Universal Fixture Mtg. Col, Inc. v. Asia N. Am. Eastbound Rate Agreement*, 26 S.R.R. 1461, 1465 (FMC 1962). Moreover, the Carriage of Goods by Sea Act ("COGSA"), 46 U.S.C. § 30701 note, vests jurisdiction to adjudicate loss and damage claims arising from transportation by ocean exclusively in the federal district courts, not the Commission.

(Emphasis added).

Although couched in terms of a violation of 46 U.S.C. § 41102(c), Claimant's complaint seeks remedies that would otherwise be available to her in a breach of contract action or property damage claim brought before a court. As a result, Claimant's complaint must be dismissed.

Respondents hereby move this Court for an award of their attorney fees pursuant to 46 C.F.R. § 502.318(b) and 46 C.F.R. § 502.254.

MOTION FOR A MORE DEFINITE STATEMENT

In the event that this Court determines that Claimant's claims against Respondents should not be dismissed, Respondents alternatively request, under Rule 12(e) of the Federal Rules of Civil Procedure, a more definite statement setting forth the Claimant's allegations against Respondents.

Rule 12(e) provides that "[i]f a pleading fails to specify the allegations in a manner that provides sufficient notice, a defendant can move for a more definite statement under Rule 12(e) before responding." *Swierkiewicz v. Sorema, N.A.*, 534 U.S. 506, 514 (2002). "Rule 12(e) motions are appropriate when the complaint is 'sufficiently intelligible for the court to be able to make out one or more potentially viable legal theories on which the claimant might proceed, but it must be so vague or ambiguous that the opposing party cannot respond, even with a simple denial, in good faith or without prejudice to himself.'" *Sefton v. Jew*, 204 F.R.D. 104, 106 (W.D. Tex. 2000)

(quoting 5A Charles A. Wright & Arthur R. Miller, Federal Practice and Procedure § 1376. p. 577–8 (2d ed.1990)).

Claimant seeks damages against several Respondents for alleged damages to her Cadillac. However, her complaint consists of conclusory allegations and alleges unspecified damages to her Cadillac without supporting facts. The complaint alleges that upon arrival to Ahmed Takane’s location, Mr. Takane informed Claimant that the Cadillac was “badly damaged.” However, Claimant does not provide the location of Ahmed Takane, specify the alleged damages to the Cadillac upon arrival to Mr. Takane’s unidentified location, or provide evidence of said damages.

At this point in the timeline of events, Claimant terminated her Contract with Respondent Sims Waters, enters into a new agreement with Ahmed Takane, and allegedly suffered additional damages to her Cadillac. While Respondents do not believe they are responsible for any damages allegedly suffered by Claimant, Respondents cannot be liable for the damages alleged to have occurred after the termination of its Contract with Claimant.

Further, Claimant alleges that Respondents violated 46 U.S.C. § 41102(c), but provides no further explanation as to how Respondents failed “to establish, observe, and enforce just and reasonable regulations and practices relating to or connected with receiving, handling, storing, or delivering property.” *Id.* For example, is Claimant alleging that Respondents failed to establish regulations and practices related to the receiving of her Cadillac, the handling of her Cadillac, the storing of her Cadillac, and/or the delivery of her Cadillac? Is Claimant alleging that Respondents failed to observe regulations and practices related to the receiving of her Cadillac, the handling of her Cadillac, the storing of her Cadillac, and/or the delivery of her Cadillac? Is Claimant alleging that Respondents failed to enforce regulations and practices related to the receiving of her Cadillac, the handling of her Cadillac, the storing of her Cadillac, and/or the delivery of her Cadillac?

Claimant's allegations against Respondents are so vague and ambiguous that Respondents cannot respond and defend themselves without prejudicing themselves. Respondents hereby move this Court to order Claimant to provide a more definite statement of her case against Respondents pursuant to Fed. R. Civ. P. 12(e).

Respectfully submitted this 19th day of November, 2018.

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/s/ 

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Attorneys for Respondents

Certificate of Service

I hereby certify that I have this day served the foregoing document upon all parties of record in this proceeding by email or U.S. mail, as specified below.

Donna Katri Wynder: Email to: dwynder@alu.norwich.edu
U.S. mail to: 280 Madison Street, Apt. 10G
New York, NY 10002

Small Claims Officer,
Federal Maritime Commission Email to: judges@fmc.gov
Office of Administrative Law Judges: First Class U.S. mail to:
800 North Capitol Street, N.W., Room 1088
Washington, D.C. 20573-0001

Sea & Shore Shipping, Inc.: U.S. mail to: 3691 State Road 580, Suite A
Mohammad Madi Oldsmar, FL 34677
Debra Caesh

1635 Gray Bark Dr.
Oldsmar, FL 34677

Dated November 19, 2018.



Shea M. Moser, attorney

EXHIBIT A

CUSTOMS POWER OF ATTORNEY
And
Acknowledgement of Terms and Conditions

Check box: ☒ Individual
☐ Partnership
☐ Corporation
☐ Sole Proprietorship
☐ Limited Liability Co.

Tax ID Number, ~~SSN~~ Passport #: 509492290 USA

KNOW ALL MEN BY THESE PRESENTS: That Donna Katri Wynder doing business as a Individual Individual residing or having a principal place of business at: 280 Madison Street, Apt 106, New York, NY 10002 hereby constitutes and appoints Sims, Waters & Associates, Inc. its officers, employees and/or specifically authorized agents to act for and on its behalf as true and lawful agent and attorney of the grantor for and in the name, place and stead of said grantor, from this date, in the United States (the "territory") either in writing, electronically, or by other authorized means, to:

Make, endorse, sign, declare, or swear to any customs entry, withdrawal, declaration, certificate, bill of lading, carnet or any other documents required by law or regulation in connection with the importation, exportation, transportation, of any merchandise in or through the customs territory, shipped or consigned by or to said grantor;

Perform any act or condition which may be required by law or regulation in connection with such merchandise deliverable to said grantor; to receive any merchandise;

Make endorsements on bills of lading conferring authority to transfer title, make entry or collect drawback; and make, sign, declare or swear to any statement or certificate required by law or regulation for drawback purposes, regardless of whether such document is intended for filing with Customs;

Import, seal, and deliver for and as the act of said grantor any bond required by law or regulation in connection with the entry or withdrawal of imported merchandise or merchandise exported with or without benefit of drawback, or in connection with the entry, clearance, lading, unloading or navigation of any vessel or other means of conveyance owned or operated by said grantor, and any and all bonds which may be voluntarily given and accepted under applicable laws and regulations, consignee's and owner's declarations provided for in section 485, Tariff Act of 1930, as amended, or affidavits or statements in connection with the entry of merchandise;

Sign and swear to any document and perform any act that may be necessary or required by law or regulation in connection with the entering, clearing, lading, unloading, or operation of any vessel or other means of conveyance owned or operated by said grantor;

Authorized other Customs Brokers duly licensed within the territory to act as grantor's agent; to receive, endorse and collect checks issued for Customs duty refunds in grantor's name drawn on the Treasurer of the United States; if the grantor is a nonresident of the United States, to accept service of process on behalf of the grantor;

And generally to transact Customs business, including filing of claims or protests under section 514 of the Tariff Act of 1930, or pursuant to other laws of the territories, in which said grantor is or may be concerned or interested and which may properly be transacted or performed by an agent and attorney.

Giving to said agent and attorney full power and authority to do anything whatever requisite and necessary to be done in the premises as fully as said grantor could do if present and acting, hereby ratifying and confirming all that the said agent and attorney shall lawfully do by virtue of these presents;

This power of attorney to remain full force and effect until revocation in writing is duly given to and received by grantee (if the donor of this power of attorney is a partnership, the said power shall in no case have any force or effect in the United States after the expiration 2 years from the date of its execution);

Appointment as Forwarding Agent. Grantor authorizes the above Grantee to act within the territory as lawful agent and sign or endorse export documents (i.e., commercial invoices, bill of lading, insurance certificates, drafts and any other document) necessary for the completion of an export on the grantor's behalf as may be required under law and regulation in the territory and to appoint forwarding agents on grantor's behalf;

Grantor acknowledges receipt of Initial DKW Terms and Conditions of Service governing all transactions between the Parties.

If the Grantor is a Limited Liability Company, the signatory certifies that he/she has full authority to execute this power on behalf of the Grantor

IN WITNESS WHEREOF, the said Individual Individual

Caused these presents to be sealed and signed: (Signature) DKW Donna Katri Wynder
(Capacity) Individual Date: 10/30/2015

Witness: (if required)

If you are the importer of record, payment to the broker will not relieve you of the liability for U.S. Customs charges (duties, taxes or other debts owed Customs) in the event the charges are not paid by the broker. Therefore, if you pay by check, Customs charges may be paid with a separate check payable to "Bureau of Customs and Border Protection" which shall be delivered to Customs by the broker. Importers who wish to utilize this procedure must contact our office in advance to arrange timely receipt of duty checks.

CUSTOMS POWER OF ATTORNEY

AND

ACKNOWLEDGEMENT OF TERMS AND CONDITIONS

SIMS, WATERS & ASSOCIATES, INC. TERMS AND CONDITIONS OF SERVICE

As Promulgated by the National Customs Brokers and Freight Forwarders Association of America, Inc.

These terms and conditions of service constitute a legally binding contract between the "Company" and the "Customer". In the event the Company renders services and issues a document containing Terms and Conditions governing such services, the Terms and Conditions set forth in such other document(s) shall govern those services.

1. **Definitions.** (a) "Company" shall mean Sims, Waters & Associates, Inc., its subsidiaries, related companies, agents and/or representatives. (b) "Customer" shall mean the person for which the Company is rendering service, as well as its principals, agents and/or representatives, including but not limited to, shippers, importers, exporters, carriers, secured parties, warehouses, buyers and/or sellers, shipper's agents, insurers and underwriters, break-bulk agents, consignees, etc. It is the responsibility of the Customer to provide notice and copy(s) of these terms and conditions of service to all such agents or representatives. (c) "Documentation" shall mean all information received directly or indirectly from Customer, whether in paper or electronic form. (d) "Ocean Transportation Intermediaries" ("OTI") shall include an "ocean freight forwarder" and a "non-vessel operating carrier". (e) "Third parties" shall include, but not be limited to the following: carriers, truckmen, cartmen, lightermen, forwarders, OTIs, customs brokers, agents, warehousemen and others to which the goods are entrusted for transportation, cartage, handling and/or delivery and/or storage or otherwise.

2. **Company As Agent.** The Company acts as the "agent" of the Customer for the purpose of performing duties in connection with the entry and release of goods, post entry services, the securing of export licenses, the filing of export and security documentation on behalf of the Customer and other dealings with Government agencies as to all other services. Company acts as an independent contractor.

3. **Limitation of Actions.** (a) Unless subject to a specific statute or international convention, all claims against the Company for a potential or actual loss, must be made in writing and received by the Company, within 60 days of the event giving rise to claim; failure to give the Company timely notice shall be a complete defense to any suit or action commenced by Customer. (b) All suits against Company must be filed and properly served on Company as follows: (i) For claims arising out of ocean transportation, within one-year from the date of loss; (ii) For claims arising out of air transportation, within two-years from the date of the loss; (iii) For claims arising out of the preparation and/or submission of an import entry(s), within 60 days from the date of liquidation of the entry(s); (iv) For any and all other claims of any other type, within 60 days from the date of the loss or damage.

4. **No Liability for the Selection or Services of Third Parties and/or Routes.** Unless services are performed by persons or firms engaged pursuant to express written instructions from the Customer, Company shall use reasonable care in its selection of third parties, or in selecting the means, route and procedure to be followed in the handling, transportation, clearance and delivery of the shipment; advice by the Company that a particular person or firm has been selected to render services with respect to the goods, shall not be construed to mean that the Company warrants or represents that such person or firm will render such services nor does Company assume responsibility or liability for any action(s) and/or inaction(s) of such third parties and/or its agents, and shall not be liable for any delay or loss of any kind, which occurs while a shipment is in the custody or control of a third party or the agent of a third party; all claims in connection with the Act of a third party shall be brought solely against such party and/or its agents; in connection with any such claim, the Company shall reasonably cooperate with the Customer, which shall be liable for any charges or costs incurred by the Company.

5. **Quotations Not Binding.** Quotations as to fees, rates of duty, freight charges, insurance premiums or other charges given by the Company to the Customer are for informational purposes only and are subject to change without notice; no quotation shall be binding upon the Company unless the Company in writing agrees to undertake the handling or transportation of the shipment at a specific rate or amount set forth in the quotation and payment arrangements are agreed to between the Company and the Customer.

6. **Reliance On Information Furnished.** (a) Customer acknowledges that it is required to review all documents and declarations prepared and/or filed with U.S. Customs & Border Protection, other Government Agency and/or third parties, and will immediately advise the Company of any errors, discrepancies, incorrect statements, or omissions on any declaration or other submission filed on Customer's behalf; (b) In preparing and submitting customs entries, export declarations, applications, security filings, documentation and/or other required data, the Company relies on the correctness of all documentation, whether in written or electronic format, and all information furnished by Customer; Customer shall use reasonable care to ensure the correctness of all such information and shall indemnify and hold the Company harmless from any and all claims asserted and/or liability or losses suffered by reason of the Customer's failure to disclose information or any incorrect, incomplete or false statement by the Customer or its agent, representative or contractor upon which the Company reasonably relied. The Customer agrees that the Customer has an affirmative non-delegable duty to disclose any and all information required to import, export or enter the goods.

7. **Declaring Higher Value to Third Parties.** Third parties to whom the goods are entrusted may limit liability for loss or damage; the Company will request excess valuation coverage only upon specific written instructions from the Customer, which must agree to pay any charges therefor; in the absence of written instructions or the refusal of the third party to agree to a higher declared value, at Company's discretion, the goods may be tendered to the third party, subject to the terms of the third party's limitations of liability and/or terms and conditions of service.

8. **Insurance.** Unless requested to do so in writing and confirmed to Customer in writing, Company is under no obligation to procure insurance on Customer's behalf; in all cases, Customer shall pay all premiums and costs in connection with procuring required insurance.

9. **Disclaimers; Limitation of Liability.** (a) Except as specifically set forth herein, Company makes no express or implied warranties in connection with its services; (b) In connection with all services performed by the Company, Customer may obtain additional liability coverage, up to the actual or declared value of the shipment or transaction, by requesting such coverage and agreeing to make payment therefor, which request must be confirmed in writing by the Company prior to rendering services for the covered transaction(s). (c) In the absence of additional coverage under (b) above, the Company's liability shall be limited to the following: (i) where the claim arises from activities other than those relating to Customs business, \$50.00 per shipment or transaction, or (ii) where the claim arises from activities relating to "Customs business," \$50.00 per entry or the amount of brokerage fees paid to Company for the entry, whichever is less; (d) In no event shall Company be liable or responsible for consequential, indirect, incidental, statutory or punitive damages, even if it has been put on notice of the possibility of such damages, or for the acts of third parties.

10. **Advancing Money.** All charges must be paid by Customer in advance unless the Company agrees in writing to extend credit to customer; the granting of credit to a Customer in connection with a particular transaction shall not be considered a waiver of this provision by the Company.

11. **Indemnification/Hold Harmless.** The Customer agrees to indemnify, defend, and hold the Company harmless from any claims and/or liability, fines, penalties and/or attorney's fees arising from the importation or exportation of customers merchandise and/or any conduct of the Customer, including but not limited to the inaccuracy of entry, export or security data supplied by Customer or its agent or representative, which violates any Federal, State and/or other laws, and further agrees to indemnify and hold the Company harmless against any and all liability, loss, damages, costs, claims, penalties, fines and/or expenses, including but not limited to reasonable attorney's fees, which the Company may hereafter incur, suffer or be required to pay by reason of such claims, in the event that any claim, suit or proceeding is brought against the Company, it shall give notice in writing to the Customer by mail at its address on file with the Company.

12. **C.O.D. Or Cash Collect Shipments.** Company shall use reasonable care regarding written instructions relating to "Cash/Collect on Deliver (C.O.D.)" shipments, bank drafts, cashier's checks, letter(s) of credit and other similar payment documents and/or instructions regarding collection of monies but shall not have liability if the bank or consignee refuses to pay for the shipment.

13. **Costs of Collection.** Costs of Collection. In any dispute involving monies owed to company, the Company shall be entitled to all costs of collection, including reasonable attorney's fees and interest per annum at the highest rate allowed by law.

14. **General Lien and Right to Sell Customer's Property.** (a) Company shall have a general and continuing lien on any and all property of Customer coming into Company's actual or constructive possession or control for monies owed to Company with regard to the shipment on which the lien is claimed, a prior shipment(s) and/or both; (b) Company shall provide written notice to Customer of its intent to exercise such lien, the exact amount of monies due and owing, as well as any on-going storage or other charges; Customer shall notify all parties having an interest in its shipment(s) of Company's rights and/or the exercise of such lien. (c) Unless, within thirty days of receiving notice of lien, Customer posts cash or letter of credit at sight, or, if the amount due is in dispute, an acceptable bond equal to 110% of the value of the total amount due, in favor of Company, guaranteeing payment of the monies owed, plus all storage charges accrued or to be accrued, Company shall have the right to sell such shipment(s) at public or private sale or auction and any net proceeds remaining thereafter shall be refunded to Customer.

15. **No Duty to Maintain Records For Customer.** Customer acknowledges that pursuant to Sections 508 and 509 of the Tariff Act, as amended (19 USC 1508 and 1509) it has the duty and is solely liable for maintaining all records required under the Customs and/or other Laws and Regulations of the United States, unless otherwise agreed to in writing, the Company shall only keep such records that it is required to maintain by Statute(s) and/or Regulation(s), but not act as a "recordkeeper" or "recordkeeping agent" for Customer.

16. **Obtaining Binding Rulings, Filing Protests, etc.** Unless requested by Customer in writing and agreed to by Company in writing, Company shall be under no obligation to undertake any pre-or post Customs release action, including, but not limited to, obtaining binding rulings, advising of liquidations, filing of petition(s) and/or protests, etc.

17. **Preparation and Issuance of Bills of Lading.** Where Company prepares and/or issues a bill of lading, Company shall be under no obligation to specify thereon the number of pieces, packages and/or cartons, etc; unless specifically requested to do so in writing by Customer or its agent and Customer agrees to pay for same, Company shall rely upon and use the cargo weight supplied by Customer.

18. **No Modification or Amendment Unless Written.** These terms and conditions of service may only be modified, altered or amended in writing signed by both Customer and Company; any attempt to unilaterally modify, alter or amend same shall be null and void.

19. **Compensation of Company.** The compensation of the Company for its services shall be included with and is in addition to the rates and charges of all carriers and other agencies selected by the Company to transport and deal with the goods and such compensation shall be exclusive of any brokerage, commissions, dividends, or other revenue received by the Company from carriers, insurers and others in connection with the shipment. On ocean exports, upon request, the Company shall provide a detailed breakout of the components of all charges assessed and a true copy of each pertinent document relating to these charges. In any referral for collection or action against the Customer for monies due by the Company, upon recovery by the Company, the Customer shall pay the expenses of collection and/or litigation, including a reasonable attorney fee.

20. **Severability.** In the event any Paragraph(s) and/or portion(s) hereof is found to be invalid and/or unenforceable, then in such event the remainder hereof shall remain in Full force and effect. Company's decision to waive any provision herein, either by conduct or otherwise, shall not be deemed to be a further or continuing waiver of such provision or to otherwise waive or invalidate any other provision herein.

21. **Governing Law; Consent to Jurisdiction and Venue.** These terms and conditions of service and the relationship of the parties shall be construed according to the laws of the State of Florida without giving consideration to principles of conflict of law. Customer and Company (a) irrevocably consent to the jurisdiction of the United States District Court and the State courts of Florida; (b) agree that any action relating to the services performed by Company, shall only be brought in said courts; (c) consent to the exercise of in personam jurisdiction by said courts over it, and (d) further agree that any action to enforce a judgement may be instituted in any jurisdiction.

Approved by the National Customs Brokers and Forwarders Association of America, Inc. (Revised 07/09)

EXHIBIT B

Sims Waters & Associates, Inc.

CUSTOMS BROKERS & FREIGHT FORWARDER

FMC#3025NF
CHB#10106

DBA SUNSHINE GLOBAL TRANSPORT
1750 EAST DUVAL ST.
JACKSONVILLE, FLORIDA 32202
Phone (904) 356-4455 Fax (904) 356-8811
myra@sims-waters.com

Shipper/Exporter

DONNA KATRI WYNDER
280 MADISON STREET
APT 10G
NEW YORK, NY 10002 US

Consignee

MR. CLEM OHAMEZE
6 KOSOVO STREET - MAITAMA
MAITAMA, ABUJA NG

Notify Party

SAME AS CONSIGNEE

Pier or Airport

BAYONNE AUTO TERMINAL

Exporting Carrier (Vessel/Airline)

GRANDE SIERRA LEONE v.1115

Port of Loading

NEW YORK, NY

Air/Sea Port of Discharge

LAGOS, NIGERIA

For Transshipment To

Particulars Furnished by Shipper

MARKS & NOS.	NO. OF PKGS	DESCRIPTION OF PACKAGES AND GOODS	WEIGHT	MEASUREMENT
	1	2007 CADILLAC ESCALADE ESV VIN#: 1GYFK66897R339070	5751 Lbs 2609 Kgs	687 Cft 19.454 Cbm

AES ITN : X20151030183237

DELIVERED BY:

LIGHTER

TRUCK

ARRIVED - DATE _____ TIME _____

UNLOADED - DATE _____ TIME _____

CHECKED BY _____

PLACED LOCATION _____
IN SHIP/ON DOCK

RECEIVED THE ABOVE DESCRIBED GOODS OR PACKAGES SUBJECT TO
ALL THE TERMS OF THE UNDERSIGNED'S REGULAR FORM OF DOCK
RECEIPT AND BILL OF LADING WHICH SHALL CONSTITUTE THE CONTRACT
UNDER WHICH THE GOODS ARE RECEIVED, COPIES OF WHICH ARE
AVAILABLE FROM THE CARRIER ON REQUEST AND MAY BE INSPECTED
AT ANY OF ITS OFFICES

BY _____
RECEIVING CLERK

DATE _____

ONLY CLEAN DOCK RECEIPT ACCEPTED

This company has a policy against payment, solicitation, or receipt of any rebate, directly or indirectly, which would be unlawful under the United States Shipping Act 1984. Upon receipt, we shall provide a detailed list of the components of these charges

(c) O.A.S.I.S. - DckRcpt02

DOCK RECEIPT

DATE 10/30/2015 3:34PM

REFERENCE # SWA0027819

BL/AWB #

Booking # S3-10867439

P.O. # 339070

CONSOLIDATION # SGT2018841

EXHIBIT C

CARRIER INFORMATION

Order ID: SWA0027819

Carrier: A Plus Transport
13 Union St
jersey city, NJ 07304
MC Number: 900463

Contact: Ahmed Takane
Phone: 347-605-2294
Phone 2: (347) 605-2294

Dispatch Sheet

Powered by
CentralDispatch.com*

Sims Waters & Associates, Inc

1750 East Duval St
jacksonville, FL 32202
Co. Phone: (904) 356-4455
Dispatch Info
Contact: Shirley
Phone: 904-356-4455
Fax: (904) 356-8811

ORDER INFORMATION

Dispatch Date: 10/30/2015 Price Listed: \$200.00
Pickup Estimated: 10/31/2015 Total Payment to Carrier: \$200.00
Delivery Estimated: 11/02/2015 On Delivery to Carrier: None
Ship Via: Open Company* owes Carrier: \$200.00
Condition: Operable

Sims Waters & Associates, Inc agrees to pay A Plus Transport \$200.00 within 2 business days (Quick Pay) of receiving a signed Bill of Lading. Payment will be made with Company Check.

*The company (broker, dealer, auction, rental company, etc.) that originated this dispatch sheet.

VEHICLE INFORMATION

Total Vehicles: 1

1 2007 cadillac escalade Type: SUV Color: Plate: VIN: Lot #:

PICKUP INFORMATION

Name: DONNA (RESIDENTIAL)
280 MADISON STREET APT 10G
new york, NY 10002
Phone: 646-575-7032

DELIVERY INFORMATION

Name: *CONTACT DISPATCHER* (BAYONNE AUTO TERMINAL GRIMALDI)
51 PORTS TERMINAL BLVD
bayonne, NJ 07002
Phone: 973-522-0224

DISPATCH INSTRUCTIONS

**BEFORE LEAVING WITH THE CAR MAKE SURE YOU HAVE THE FOLLOWING: Keys, title, any other documentation the Auction/Customer has. If there are ANY issues with the car upon pick up please let us know ASAP. If it's a flat tire, broken window, no keys, car won't start, no bumper, doors won't open or close or enough damage that it is not drivable, we need to know about it. The ports will not accept cars in these conditions and if we know about it ahead of time we can get it delivered to a site near the port that will redeliver them later, or have it switched to a non-runner and get you an updated Dock receipt. Thank you.

Note: Port will no longer accept Fax or emailed dock receipts
Original title
5 copies (front + back + any reassignments)
5 dock receipts
One copy of the AES print out

This should be picked up within 2 days of 10/31/2015. This should be delivered within 2 days of 11/02/2015.

PLEASE GIVE THE CUSTOMER AT LEAST A 24 HOUR NOTICE FOR PICKUP AND DELIVERY. PLEASE DO A THOROUGH INSPECTION OF THE VEHICLE ON PICKUP.

Authority to transport this vehicle is hereby assigned to A Plus Transport. By accepting this agreement A Plus Transport certifies that it has the proper legal authority and insurance to carry the above described vehicle, only on trucks owned by A Plus Transport. All invoices must be accompanied by a signed delivery receipt and faxed to Sims Waters & Associates, Inc. The above agreed upon price includes any and all surcharges unless otherwise agreed to by both A Plus Transport and Sims Waters & Associates, Inc.

The agreement between A Plus Transport and Sims Waters & Associates, Inc, as described in this dispatch sheet, is solely between A Plus Transport and Sims Waters & Associates, Inc. Dealertrack CentralDispatch, Inc. is not a party to such agreement, has no obligation under such agreement and expressly disclaims all liability whatsoever arising out of, or in connection with such agreement.

CD reference # 10462796

EXHIBIT D

Ryan Sims

From: Donna Wynder-Sontera <dksohi@me.com>
Sent: Wednesday, November 04, 2015 10:39 PM
To: Ryan Sims
Subject: Re: sims waters quote

Ryan,
I do not wish to continue utilizing service and would like to have my vehicle returned to me as quickly as possible.
Thank you

Best regards,
D. Katri Wynder

Sent from Outlook

EXHIBIT E

Federal Maritime Commission

Donna Katri Wynder,

Claimant,

Informal Docket No. 1962(I)

v.

Ryan Sims, Sims, Waters & Associates, Inc.
d/b/a Sunshine Global Transport, Mohammad
Madi, Debra Caesh d/b/a Sea & Shore Shipping,
Inc.,

Respondents.

AFFIDAVIT OF MYRA SIMS

Before me, the undersigned authority, personally appeared Myra Sims ("Affiant"), who swore or affirmed that:

1. Affiant is competent to make this affidavit and is making this Affidavit based upon my own personal knowledge.

2. Affiant is the director, president, and secretary of Sims, Waters & Associates, Inc. and is authorized to make this affidavit.

3. Sims, Waters & Associates, Inc. had no further business dealings with Donna Katri Wynder subsequent to November 4, 2015 when she terminated her contract with Sims, Waters & Associates, Inc.

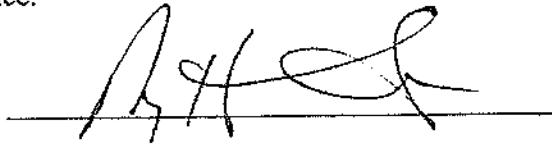
4. As of October 30, 2015, the day Sims, Waters & Associates, Inc. dispatched A Plus Transport, LLC to pick up Claimant's Cadillac, Sims, Waters & Associates, Inc. had used A Plus Transport, LLC on eight (8) separate occasions from approximately July 21, 2015 to October 22, 2015 without any incidents or complaints from clients.

5. Sims, Waters & Associates, Inc. used A Plus Transport, LLC an additional eight (8) times after the incident which gives rise to Claimant's complaint without any incidents or complaints from clients.

6. Sims, Waters & Associates, Inc. did not receive any payment for services rendered to Donna Katri Wynder.

7. Before engaging A Plus Transport, LLC to transport vehicles for Sims, Waters & Associates, Inc. and before engaging A Plus Transport to transport Claimant's

Cadillac, Sims, Waters & Associates, Inc. confirmed that A Plus Transport carried insurance.

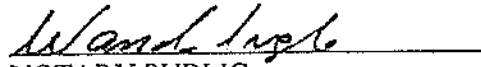


Myra Sims

STATE OF FLORIDA
COUNTY OF DUVAL

I HEREBY CERTIFY that on this day, before me, an officer duly authorized to administer oaths and take acknowledgments, personally appeared Myra Sims, known to me to be the person described in and who executed the foregoing instrument, who acknowledged before me that she executed the same, that I relied upon the following form of identification of the above-named person: personally known, and that an oath (was) (was not) taken.

WITNESS my hand and official seal in the County and State last aforesaid this 19th day of November, 2018.


NOTARY PUBLIC

Wanda Ingle
NOTARY PUBLIC
STATE OF FLORIDA
Comm# GG262792
Expires 10/28/2022

EXHIBIT F

GENERAL SERVICE AGREEMENT

THIS GENERAL SERVICE AGREEMENT (the "Agreement") dated this 7th day of November, 2015

BETWEEN:

Donna Katri Wynder of 280 Madison Street, Apt 10 G, Manhattan, New York
(the "Customer")

- AND -

AHMED TAKANE of TERMINAL 51 PORT TERMINAL BLVD , Bayonne, New Jersey
(the "Service Provider").

BACKGROUND:

- A. The Customer is of the opinion that the Service Provider has the necessary qualifications, experience and abilities to provide services to the Customer.
- B. The Service Provider is agreeable to providing such services to the Customer on the terms and conditions set out in this Agreement.

IN CONSIDERATION OF the matters described above and of the mutual benefits and obligations set forth in this Agreement, the receipt and sufficiency of which consideration is hereby acknowledged, the Customer and the Service Provider (individually the "Party" and collectively the "Parties" to this Agreement) agree as follows:

Services Provided

1. The Customer hereby agrees to engage the Service Provider to provide the Customer with services (the "Services") consisting of:
 - Freight Forward shipping service delivery for a 2007 Escalade Cadillac ESV TO NIGERIA - LAGOS from MANHATTAN, NEW YORK - USA. Service to be provided as follows: VIP Handling, RORO, Transport, Marine Insurance, FEDEX Bill of Lading.

2. The Services will also include any other tasks which the Parties may agree on. The Service Provider hereby agrees to provide such Services to the Customer.

Term of Agreement

3. The term of this Agreement (the "Term") will begin on the date of this Agreement and will remain in full force and effect until the completion of the Services, subject to earlier termination as provided in this Agreement. The Term of this Agreement may be extended by mutual written agreement of the Parties.

Performance

4. The Parties agree to do everything necessary to ensure that the terms of this Agreement take effect:

Currency

5. Except as otherwise provided in this Agreement, all monetary amounts referred to in this Agreement are in USD (US Dollars).

Compensation

6. For the services rendered by the Service Provider as required by this Agreement, the Customer will provide compensation (the "Compensation") to the Service Provider of a fixed amount of \$1,600.00.
7. The Compensation will be payable, while this Agreement is in force, according to the following payment terms:
 - Full payment was rendered before freight forwarder delivery. Ahmed Takane transported vehicle to his yard awaiting vehicle title, name of COSIGNEE, and Bill of Sale. Payment was rendered in CASH.

Reimbursement of Expenses

8. The Service Provider will not be reimbursed for expenses incurred by the Service Provider in connection with providing the Services of this Agreement.

Confidentiality

9. Confidential information (the "Confidential Information") refers to any data or information relating to the Customer, whether business or personal, which would reasonably be considered to be private or proprietary to the Customer and that is not generally known and where the release of that Confidential Information could reasonably be expected to cause harm to the Customer.
10. The Service Provider agrees that they will not disclose, divulge, reveal, report or use, for any purpose, any Confidential Information which the Service Provider has obtained, except as authorized by the Customer. This obligation will survive indefinitely upon termination of this Agreement.
11. All written and oral information and material disclosed or provided by the Customer to the Service Provider under this Agreement is Confidential Information regardless of whether it was provided before or after the date of this Agreement or how it was provided to the Service Provider.

Return of Property

12. Upon the expiry or termination of this Agreement, the Service Provider will return to the Customer any property, documentation, records, or Confidential Information which is the property of the Customer.

Capacity/Independent Contractor

13. In providing the Services under this Agreement it is expressly agreed that the Service Provider is acting as an independent contractor and not as an employee. The Service Provider and the Customer acknowledge that this Agreement does not create a partnership or joint venture between them, and is exclusively a contract for service.

Notice

14. All notices, requests, demands or other communications required or permitted by the terms of this Agreement will be given in writing and delivered to the Parties of this Agreement as follows:
 - a. Donna Katri Wynder
280 Madison Street, Apt 10 G
Manhattan, New York, 10002
Fax: (____) _____ - _____
Email: dksohl@me.com

- b. AHMED TAKANE
TERMINAL 51 PORT TERMINAL BLVD
Bayonne, New Jersey, 07002
Fax: () -
Email: _____

or to such other address as any Party may from time to time notify the other.

Insurance

15. The Service Provider will be required to maintain general liability insurance including coverage for bodily injury and property damage at a level that would be considered reasonable in the industry of the Service Provider based on the risk associated with characteristics of this Agreement and only to the extent permitted by law. All insurance policies will remain materially unchanged for the duration of this Agreement.

Additional Clauses

16. (1) Receipt of Dock Stamp to be provided to Donna Katri Wynder, Customer as soon as vehicle is on freight
(2) Bill of Lading will be FEDEX to Donna Katri Wynder, Customer.
17. (3) VIP HANDLING OF VEHICLE
(4) MARINE INSURANCE.

Modification of Agreement

18. Any amendment or modification of this Agreement or additional obligation assumed by either Party in connection with this Agreement will only be binding if evidenced in writing signed by each Party or an authorized representative of each Party.

Time of the Essence

19. Time is of the essence in this Agreement. No extension or variation of this Agreement will operate as a waiver of this provision.

Assignment

20. The Service Provider will not voluntarily or by operation of law assign or otherwise transfer its obligations under this Agreement without the prior written consent of the Customer.

Entire Agreement

21. It is agreed that there is no representation, warranty, collateral agreement or condition affecting this Agreement except as expressly provided in this Agreement.

Enurement

22. This Agreement will enure to the benefit of and be binding on the Parties and their respective heirs, executors, administrators, successors and permitted assigns.

Titles/Headings

23. Headings are inserted for the convenience of the Parties only and are not to be considered when interpreting this Agreement.

Gender

24. Words in the singular mean and include the plural and vice versa. Words in the masculine mean and include the feminine and vice versa.

Governing Law

25. It is the intention of the Parties to this Agreement that this Agreement and the performance under this Agreement, and all suits and special proceedings under this Agreement, be construed in accordance with and governed, to the exclusion of the law of any other forum, by the laws of the State of _____, without regard to the jurisdiction in which any action or special proceeding may be instituted.

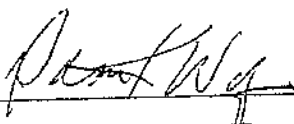
Severability

26. In the event that any of the provisions of this Agreement are held to be invalid or unenforceable in whole or in part, all other provisions will nevertheless continue to be valid and enforceable with the invalid or unenforceable parts severed from the remainder of this Agreement.

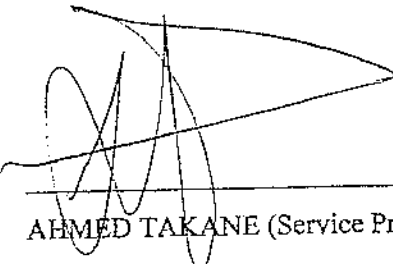
Waiver

27. The waiver by either Party of a breach, default, delay or omission of any of the provisions of this Agreement by the other Party will not be construed as a waiver of any subsequent breach of the same or other provisions.

IN WITNESS WHEREOF the Parties have duly affixed their signatures under hand and seal on this 7th day of November, 2015.

 11/07/2015

Donna Katri Wynder (Customer)



AHMED TAKANE (Service Provider)